- Those born in India on or after 3rd December 2004 are considered citizens of India or one of whose parents is a citizen of India and the other is not an illegal migrant at the time of their birth.

2) By Descent

- A Person born outside India on or after 26th January 1950 but before 10th December 1992 is a citizen of India by descent, if his father was a citizen of India at the time of his birth.
- A person born outside India on or after 10th December 1992 is considered as a citizen of India if either of his parents is a citizen of India at the time of his birth.
- From 3rd December 2004 onwards, a person born outside India shall not be a citizen of India by descent, unless his birth is registered at an Indian consulate within one year of the date of birth.

3) By Registration

- A Person of Indian origin who is ordinarily resident in any country or place outside undivided India.
- A Person of Indian origin who is ordinarily resident in India for seven years before making an application for registration.
- A Person who is married to a citizen of India and is ordinarily resident in India for seven years before making an application for registration

4) By Naturalisation

The Central Government may, on an application, grant a certificate of naturalization to any person

- if he is not a citizen of any country where citizens of India are Prevented from becoming subjects or citizens of that country
- a citizen of any country, renounce the citizenship of that country
- he has either resided in India or been in the service of a Government in India or throughout the period of twelve months
- he is a good character and has an adequate knowledge of a language specified in the Eighth Schedule to the Constitution. (presently 22 languages)

5) By incorporation of Territory

- If any foreign territory becomes a part of India, the Government of India specifies the persons who among the people of the territory shall be the citizens of India. Such persons become the citizens of India from the notified date. For example, when Pondicherry became a part of India, the Government of India issued the citizenship (Pondicherry) order, 1962.

Loss of Indian Citizenship

Part II of the Constitution of India (Article 5-11) prescribes three ways of losing citizenship.

Renunciation: (is a voluntary act) when a person after acquiring the citizenship of another country gives up his/her Indian citizenship.

Termination: (takes place by operation of law) When an Indian citizen voluntarily acquires the citizenship of another country; he/she automatically ceases to be an Indian citizen.

Deprivation: (is a compulsory termination) The citizenship is deprived on the basis of an order of the Government of India in cases involving acquisition of Indian citizenship by fraud, false representation or being disloyal to the Constitution.



Nationality and citizenship

Nationality is the status of belonging to a particular nation by origin, birth basically, it's an ethnic and racial concept. Nationality of a person cannot be changed.

Citizenship is granted to an individual by the government of the country when he/she complies with the legal formalities. Citizenship can be changed.

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